

PLE5018: CIVIL LITIGATION PRACTICE

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Civil Litigation Practice

Subject Code

PLE - Professional Legal Education

Course Number

5018

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

3

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

Nil

Exclusive Courses

Nil

Part II Course Details

Abstract

This course aims to prepare students for the practice of civil litigation. The main objective of the course is to enable students to obtain a good understanding of the civil litigation process and how to draft pleadings, orders and legal

documents in Hong Kong, become familiar with the Rules of the High Court and District Court and related case law and Ordinances, learn how to use and apply this law and solve the kinds of practical problems which legal practitioners deal with in practice.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Explain the main principles relating to the practice of civil litigation, including: - the main issues and concerns which exist in the practice of civil litigation; and - the operation in practice of the rules of civil procedure.		x	x	
2	Apply his/her knowledge of civil procedure and the practice of civil litigation to given facts, including to: - strategize and see the "bigger picture" of where he/she is going with a proposed course of action (e.g. what are the pros and cons insofar as these can be predicted); - assess the likely outcome of a proposed course of action; - assess the costs consequences; - assess the proportionality and reasonableness of the proposed advice; and - consider settlement options and your client's best interests.		x	x	x
3	Explain and communicate to a client, both orally and in writing, the proposed advice and recommended course(s) of action and the reasons for such advice and recommendation(s).		x	x	x
4	Apply his/her drafting skills to draft pleadings and legal documents relating to the practice of civil litigation.		x	x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	Lectures	Students will gain both a conceptual and practical overview of civil litigation practice, with demonstrations of online legal resources that they can use to assist them legal practice in the future.	1, 2, 3, 4	
2	Tutorials	Students will expand and consolidate their knowledge on topics by completing designated assignments (i.e. problem-solving exercises and group and/or individual drafting exercises) in advance with feedback to be provided by the tutor. Students will engage in critical group discussion in tutorial with their peers and tutor about the designated assignments in order to improve, deepen and broaden their knowledge on topics.	1, 2, 3, 4	

Continuous Assessment (%)

0

Examination (%)

100

Examination Duration (Hours)

4

Minimum Examination Passing Requirement (%)

50

Additional Information for ATs

Final examination: CILO No. 1,2,3,4.

The use of Generative AI tools is not allowed.

Assessment Rubrics (AR)**Assessment Task**

Examination at end of Semester A

Criterion

To pass this course students must obtain a mark of 50%.

Excellent

(A+, A, A-) The work meets the client' s needs in all respects, evidenced by:

- a superior grasp of the issues and subject matter
- good organization
- a capacity to analyze and synthesize
- possession of an extensive knowledge base
- a superior understanding of drafting
- a superior use of lawyers skills

Good

(B+, B, B-) The work meets the client' s needs in most respects, evidenced by:

- a strong grasp of the issues and subject matter
- some critical and analytical ability
- an understanding of the applicable law and procedures
- a good understanding of drafting
- a good use of lawyer skills

Fair

(C+, C, C-*) The work meets the client' s main needs, evidenced by:

- an adequate grasp of the issues and subject matter
- an ability to develop solutions to the client' s problems
- a basic understanding of drafting
- a basic use of lawyer skills

Marginal

(D*)

Failure

(F) The work does not meet the client' s needs, evidenced by little or an insufficient:

- grasp of the issues and subject matter
- critical and analytical ability
- understanding of drafting
- understanding of the applicable law and procedures

Additional Information for AR

* Note: The University's grades C- and D are not used in the PCLL.

Part III Other Information

Keyword Syllabus

- Introduction to Civil Litigation Practice.
- The Law of Evidence.
- Commencing Proceedings and Service.
- Pleadings.
- Drafting of Pleadings Orders and Legal Documents.
- Interlocutory Proceedings & Case Management.
- Personal Injury Actions.
- Injunctions.
- Settlement.
- Costs.
- Enforcement of Judgments/Orders.
- Civil Appeals.

Reading List

Compulsory Readings

Title	
1	These include the Civil Litigation Practice Deskbook and all the Course Materials for this course. The other recommended and required references and reading for each topic will be found in the Deskbook and in the Course Materials for each topic.

Additional Readings

Title	
1	Hong Kong Judiciary (https://www.judiciary.hk/en/home/index.html)
2	Hong Kong e-Legislation (https://www.elegislation.gov.hk/)
3	Lexis+ Hong Kong and Westlaw Asia databases - available through “Law Collection - Electronic Resources of Law” section or “E-Resources” section of the Run Run Shaw Library website
4	eBRAM International Online Dispute Resolution Centre (https://www.ebram.org/)